



**CITY  
TREASURER -  
PURCHASING**

710 S. Lions Park Dr.  
2<sup>nd</sup> Floor  
Cheyenne, WY 82001  
(307) 773-1045  
[cheyennecity.org](http://cheyennecity.org)

**MEMORANDUM**

**TO:** Mayor Patrick Collins, and City Council  
**FROM:** TJ Barttelbort, Purchasing Manager   
**DATE:** July 21, 2026  
**SUBJECT:** Consideration of Bid #S-15-26 for a Contract between the City of Cheyenne and Z and Z Seal Coating Inc. for the 2026 Crack Seal project

Bid #S-15-26 was solicited for the 2026 Crack Seal project.

Six (6) bidders responded to this bid, and the bid tabulation is attached. The bids were received from:

1. A-1 Chipseal Co.
2. Asphalt Preservation, LLC
3. JD Peterick Inc.
4. Superior Asphalt, LC
5. Vance Brothers llc
6. Z and Z Seal Coating Inc

The bids were reviewed by Doug Klahn (1% Construction), and Tom Cobb (Engineering), and the group recommends award to the lowest responsive bidder – Z and Z Seal Coating Inc.

The total requested bid award for is **\$443,239.68**

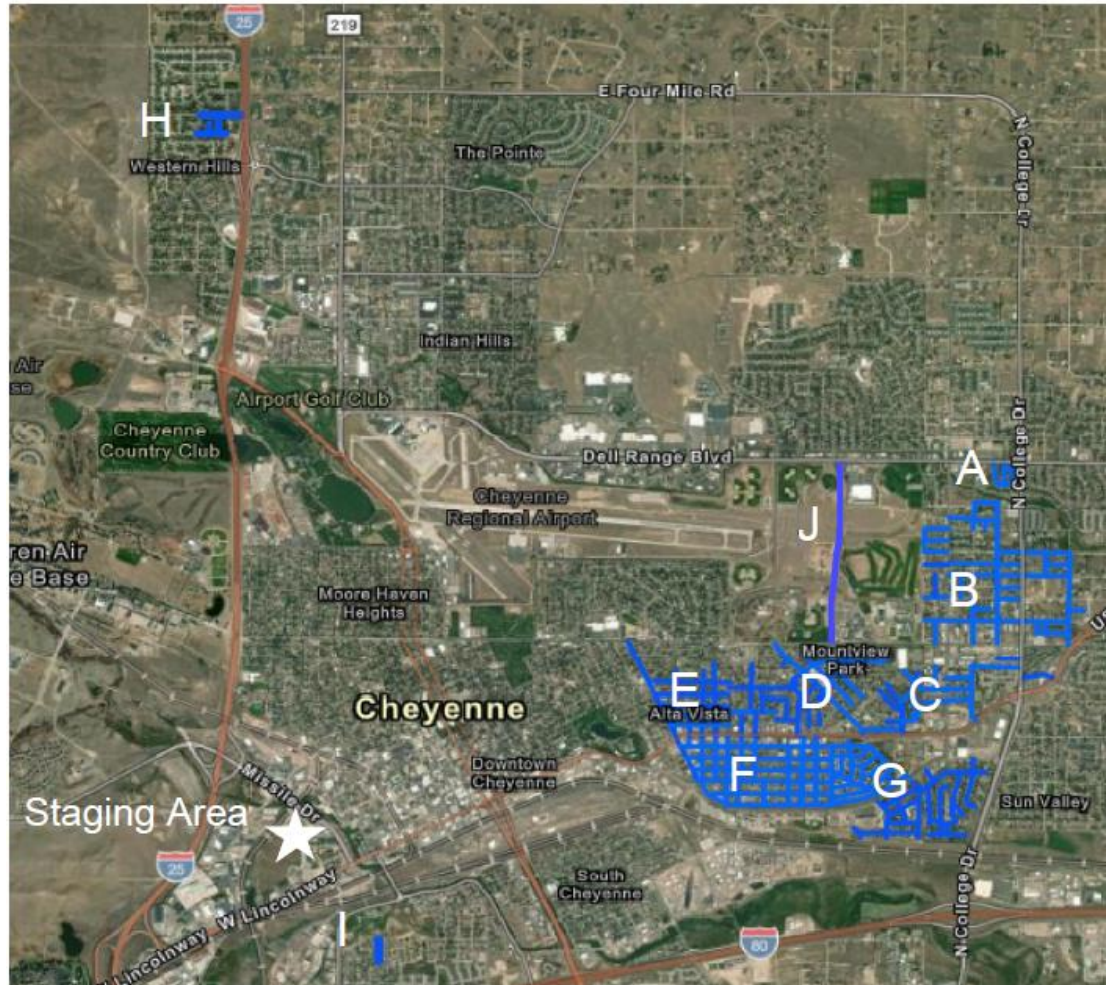
Funding: 021-26-2616-42-43491  
(1% Sales Tax 23-26 / Crack Seal)



CITY OF  
**CHEYENNE**  
— WYOMING —

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City of Cheyenne

Purchasing

TJ Barttelbort, Purchasing Manager  
2101 O'Neil Ave., Room 309, Cheyenne, WY 82001

A handwritten signature in blue ink, appearing to read "TJ Barttelbort".

## EVALUATION TABULATION

IFB No. S-15-26

2026 Crack Seal

RESPONSE DEADLINE: July 13, 2026 at 2:00 pm

Report Generated: Tuesday, July 21, 2026

### SELECTED VENDOR TOTALS

| Vendor                    | Total        |
|---------------------------|--------------|
| Z and Z Seal Coating      | \$443,239.68 |
| Asphalt Preservation, LLC | \$469,709.28 |
| Superior Asphalt, LC      | \$487,573.28 |
| JD Peterick Inc.          | \$570,161.76 |
| A-1 Chipseal Co.          | \$744,967.60 |
| Vance Brothers llc        | \$985,298.54 |

### 2026 CRACK SEAL

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IFB No. S-15-26

2026 Crack Seal

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CITY OF CHEYENNE, WYOMING  
AGREEMENT

Bid No. S-15-26

Contract No. \_\_\_\_\_

THIS AGREEMENT, entered into this \_\_\_\_ day of \_\_\_\_\_, 2026, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the “CITY”, and **Z AND Z SEAL COATING INC.**, hereinafter referred to as the “CONTRACTOR”.

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

**ARTICLE 1. STATEMENT OF WORK.** The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the “**2026 Crack Seal**” project all in strict accordance with the Contract Documents.

**ARTICLE 2. SUMMARY OF WORK.** Contractor shall furnish all labor, materials, equipment, supervision, and services necessary to perform the Work in strict accordance with this Agreement and the Contract Documents identified in Article 6. The Work includes pavement preservation improvements through the sealing of existing asphalt cracks to prevent water infiltration and extend the service life of the roadway surface. Work includes traffic control in accordance with the MUTCD, incidental flagging operations, mobilization, and related construction activities.

**ARTICLE 3. RESPONSIBLE DESIGNEE FOR THE CITY.** The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract, or any other provisions herein, contact the City Engineer, or his/her designated representative.

**ARTICLE 4. TIME FRAME FOR COMPLETION.** The services to be performed under this Agreement shall commence on the date stipulated in the “Notice to Proceed” that will be issued by the City. The work shall be completed by **October 31, 2026**. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

**ARTICLE 5. COMPENSATION AND METHOD OF PAYMENT.** The CITY will pay the CONTRACTOR for the performance of the Contract in current funds, **a total not to exceed amount of four hundred forty-three thousand, two hundred thirty-nine dollars, and sixty-eight cents (\$443,239.68).** In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract

amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

a. The Contractor will be paid on a monthly basis for the percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the payable due date as established annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

b. The City will withhold five percent (5%) of the dollar value of the work completed for a minimum of forty-one (41) calendar days after Notice of Final Settlement has been published in accordance with Wyo. Stat. §16-6-116. Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; the Consent of Surety; Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; and a current Workers Compensation Certificate. Final payment will not be made until the above documents have been received by the City, all items on the Punch List have been completed, and the advertising requirements have been met.

ARTICLE 6. CONTRACT. The executed Contract Documents shall consist of the following:

- |                                      |                               |
|--------------------------------------|-------------------------------|
| 1. This Agreement;                   | 6. Supplemental Conditions;   |
| 2. Invitation for Bids;              | 7. Part IV Forms & Notices;   |
| 3. Instructions to Bidders;          | 8. Specifications and Special |
| 4. Signed Bid Proposal;              | Provisions; and               |
| 5. General Conditions and Insurance; | 9. Drawings.                  |

This Agreement, together with other documents enumerated in this Article 6, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

[SIGNATURES ON FOLLOWING PAGE]

IN WITNESS WHEREOF, that the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

**CITY OF CHEYENNE, WYOMING**

\_\_\_\_\_  
Kylie Soden, City Clerk

\_\_\_\_\_  
Patrick Collins, Mayor

**Contractor**

Z and Z Seal Coating Inc

By

\_\_\_\_\_  
Title: \_\_\_\_\_  
P.O. Box 80371  
Billings MT 59108